

Mohan Singh vs Savitri Negi on 16 July, 2024

Neutral Citation No. (2024:HHC:5185) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision Nos. 263 and 234 of 2021 .

Reserved on: 01.07.2024 Date of Decision: 16.07.2024

1. Cr. Revision No. 263 of 2021 Mohan SinghPetitioner Versus Savitri NegiRespondent

2. Cr. Revision No. 234 of 2021 Savitri Negi r to Versus ...Petitioner Mohan SinghRespondent
Coram Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting? Yes For the petitioner : Ms. Anu Tuli, Advocate.

For the Respondent : Mr. Mehar Chand Thakur, Advocate.

For the petitioner : Mr. Mehar Chand Thakur, Advocate. For the Respondent : Ms. Anu Tuli, Advocate. _____ Rakesh Kainthla, Judge The

present revisions are directed against the order dated 01.09.2021, vide which the application for maintenance filed by the wife was allowed and the husband was directed to pay Page |2 maintenance @ 5,000/- per month to the wife from the date of the filing of the petition. (Parties shall be referred hereinafter to as .

their respective status).

2. Briefly stated, the facts giving rise to the present petitions are that the wife and her children filed a petition under Section 125 of Cr.P.C. for grant of maintenance. It was asserted that marriage between the husband and wife was solemnized in the year 1987. Three children (petitioners No.2 to 4) were born to the parties. The husband expected a male issue but when three daughters were born, he started quarrelling with his wife and beating her. He demanded 5,00,000/- from his wife. He said that he had taken a loan from Smt. Meera. When the wife was unable to meet the demand, the husband turned her and her children out of his home. The husband opened the lock of the door with the intervention of relatives and respectable persons of the society and gave only two rooms to the wife and her children in the house. The husband is also residing in the same building as the petitioners.

The husband is a permanent employee posted as Senior Assistant in the office of IP&H Division, Kasumpti, Shimla, H.P. He is getting a salary of 40,000/- per month and rent of 7,000/- per month.

He also owns a big apple orchard and earns 5,00,000/- per Page |3 annum. He is also the co-owner of the apple orchard at Kinnaur and earns 6,00,000/- per annum. His total income is more than .

15,00,000/- per annum. Petitioners are unable to maintain themselves; hence, the petition was filed for seeking maintenance.

3. The petition was opposed by filing a reply denying the contents of the petition. It was asserted that the wife is receiving the rent of 4,500/- from Naresh Kumar and 2,000/- from Hem Chand. The children have become majors. Petitioner No.2 was working as a Manager at Aroma Hotel in Chandigarh. She was getting a salary of 22,000/- per month. Petitioner No.3 was doing the course of BDS at Shimla and was going to finish her course in 2016. Petitioner No.1-wife was running a boutique at home and she was earning 7,000/- per month. The respondent-husband was providing all expenses for the education of his children. The wife became Brahmakumari in March 2014. She filed various complaints against her husband before various authorities. Respondent-

husband had taken a loan to construct the house. The petition was filed on the false facts. The respondent-husband was getting 36,200/- whereas petitioner No.1 wife was getting 6,500/- per month as rent; therefore, it was prayed that the present petition be dismissed.

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4. An application for interim maintenance was filed, which was allowed and maintenance of 6,500/- per month was awarded .

to all the petitioners from the date of the order till the pendency of the main petition.

5. The following issues were framed by the learned Trial Court on 26.02.2021:

"1. Whether the respondent has neglected to maintain the petitioner as alleged...OPP.

2. Whether the petition is not maintainable as alleged? OPR.

3. Relief."

6. The parties were called upon to produce the evidence.

Petitioner No.1-wife examined herself.

7. When the matter was listed for recording the respondent/husband's evidence on 19.08.2021, the learned Trial Court noticed that the husband was not paying the maintenance;

hence, it struck off his defence and discharged the witnesses.

8. The learned Trial Court held that the version of the petitioners (wife and children) that the respondent/husband had neglected to maintain them was acceptable. The petitioner No.1 being the legally wedded wife was entitled to be maintained by her husband. The petitioner-wife was getting the rent from the tenants Page |5 @ 5500/- per month, which was to be adjusted. The income of the

respondent was proved to be 34,625/-. The Dearness Allowance .

had increased and his salary could not be less than 50,000/- per month, hence, the respondent-husband was ordered to pay maintenance @ 5,000 per month to the petitioner-wife. The other children had become major and the claim on their behalf was deleted.

9. Being aggrieved from the order passed by the learned Trial Court, both parties have filed separate revisions. In the revision filed by the husband, the order passed by the learned Trial Court striking off the defence and the final order was assailed. It was asserted that the petition was not maintainable as the respondent-husband had never neglected to maintain his wife. She was taking rent from two tenants. The respondent-husband was also maintaining his children. The evidence was closed arbitrarily.

The opportunity to lead the evidence was wrongly denied. The case was fixed for evidence on 17.07.2021 and it was adjourned for 19.08.2021. The evidence was to be produced as the last opportunity. The learned counsel for the respondent-husband had filed the list of witnesses and deposited the diet money. The notices were also issued to the witnesses. An application for depositing the Page |6 diet money was declined on the ground that the application was filed belatedly. The defence was struck off without any justification.

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The respondent/husband also applied to modify the order, but the application was rejected. Learned Trial Court had ordered the attachment of the salary, as well as, the striking off the defence.

When the order of attachment of salary was passed, the defence should not have been struck off. The execution petition was also time-barred but no finding was recorded by the learned Trial Court; hence, it was prayed that the order passed by the learned Trial Court striking off the defence be set aside and an opportunity be provided to the husband to lead the evidence.

10. In the petition filed by the wife, it was asserted that the learned Trial Court had not awarded adequate maintenance to the wife. The income of the husband was not considered while awarding the maintenance. The evidence of the petitioner-wife had remained un-rebutted and the same should have been accepted by the learned Trial Court. The respondent-husband was getting 56,053/- as salary. He has also agricultural income from the orchards owned by him; therefore, it was prayed that the order passed by the learned Trial Court be modified and maintenance be enhanced to 20,000/- per month.

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11. I have heard Ms Anu Tuli, learned counsel for the respondent/husband and Mr Mehar Chand Thakur, learned counsel .

for the petitioner/wife.

12. Ms Anu Tuli, learned counsel for the respondent/husband submitted that the learned Trial Court erred in striking of the defence. Such an order should have been passed in extraordinary situations when the contumacious conduct of the husband was proved on record. The order sheets of the learned Trial Court do not show that the husband had deliberately refused to pay the maintenance; hence, she prayed that the order striking off the defence be set aside and opportunity be provided to the husband to lead the evidence.

13. Mr. Mehar Chand Thakur, learned counsel for the petitioner/wife supported the order passed by the learned Trial Court and submitted that the Court had jurisdiction to strike off the defence on failure to pay the interim maintenance. Learned Trial Court had rightly held that it could not be a silent spectator to the non-payment of the rent and had the power to strike off the defence when the maintenance was not paid by the respondent-

husband; therefore, he prayed that the petition filed by the Page |8 respondent-husband be dismissed. He further submitted that the learned Trial Court had not awarded adequate compensation to the .

petitioner-wife. When it was proved on record that the salary of the respondent-husband was about 50,000/- per month, the maintenance of 5,000/- awarded to the petitioner-wife was not as per her standard of living, which she was entitled to maintain.

Therefore, he prayed that the present petition be allowed and the maintenance amount be enhanced.

14. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

15. Learned Trial Court relied upon the judgments of *Rajnesh v. Neha*, (2021) 2 SCC 324: (2021) 2 SCC (Civ) 220: 2020 SCC OnLine SC 903 and *Kaushalya v. Mukesh Jain*, (2020) 17 SCC 822: 2019 SCC OnLine SC 1915, to strike off the defence. The Hon'ble Supreme Court discussed the power of the Family Court to strike off the defence in case of non-payment of interim maintenance and held that an order to strike off the defence ought to be passed in the last resort if the courts find default to be wilful and contumacious. It was observed in *Rajnish* (supra):

"126. Striking off the defence of the respondent is an order which ought to be passed in the last resort, if the courts find Page |9 default to be wilful and contumacious, particularly to a dependent unemployed wife, and minor children. Contempt proceedings for wilful disobedience may be initiated before the appropriate court.

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VI. Final Directions

132. For enforcement/execution of orders of maintenance, it is directed that an order or decree of maintenance may be enforced under Section 28-A of the Hindu Marriage Act, 1955; Section 20(6) of the DV Act; and Section 128 of CrPC, as may be applicable. The order of maintenance may be enforced as a money decree of a civil court as per the provisions of the CPC, more particularly Sections 51, 55, 58, 60 read with Order 21."

16. This judgment was considered by the Kerala High Court in Pinchu Chandran v. Arya J., 2023 SCC OnLine Ker 10812, and it was held that an opportunity should be provided to the husband to pay the arrears of interim maintenance before resorting to the extreme steps of striking off the defence. It was observed:

"18. With the pronouncement of Kaushalya 2020 KHC 6766 and Rajnesh2020 (6) KHC 1, the law has crystallised that the defence of the respondent can be struck off in a proceeding under Section 125 as the last resort if he willfully and contumaciously fails to pay interim maintenance to his dependent wife and minor child. Thus, the decision in Sakeer Hussain T.P. 2016 (5) KHC 167 is no longer a good law.

19. The intention of the Parliament that an application for interim maintenance is to be disposed of within sixty days is to provide succour to the dependent wife, children and parents during the pendency of the main proceedings. Although Section 125 (3) lays down the procedure to enforce an order of interim maintenance, the stark truth and reality are that it takes months, if not years, to get the order enforced, by this time, the main proceeding may be disposed, P a g e | 10 rendering the benevolent purpose of the legislation otiose and leaving the vagrant in the lurch. Perhaps, it is keeping in mind the bottlenecks in the procedure and to uphold the majesty of the Court, the Honourable Supreme Court in the .

afore-cited precedents has held the defence of the erring husband/father/son can be struck off in a proceeding under Section 125, as a last resort, on his failure to pay interim maintenance.

20. The judgment in Hari. B 2021 KHC OnLine 60 was pronounced by this Court on 20.1.2021, and the judgments in Kaushalya 2020 KHC 6766 and Rajnesh 2020 (6) KHC 1 were pronounced on 24.07.2019 and 04.11.2020, respectively. The later decision was rendered without adverting to Kaushalya 2020 KHC 6766 and Rajnesh2020 (6) KHC 1. Therefore, the judgment in Hari B 2021 KHC OnLine 60 is per incuriam.

21. In the present case, this Court finds that the Family Court has failed to provide the revision petitioner an opportunity to pay the arrears of interim maintenance before resorting to the extreme step of striking off his defence, which is not in consonance with the law laid down in Rajnesh 2020 (6) KHC 1 and Muraleedharan v. Jincy 2018 (4) KHC 639. Therefore, I am of the view that the revision petitioner is to

be given one last opportunity to pay the arrears of interim maintenance, and if he does so, he be permitted to contest the application on its merits, which would do complete justice to both sides."

17. A perusal of the order sheets of the learned Trial Court shows that the interim maintenance was awarded on 27.4.2017. The matter was listed for framing the point of determination on 05.08.2017, however, it was not taken up on that day because the file was requisitioned by learned ADJ-II. The matter remained stayed and was ultimately transferred to the Family Court, which P a g e | 11 observed on 17.12.2020 that no copy of the stay order was available on record, hence, notices were issued to the parties. The points for .

determination were framed on 26.02.2021. One PW was examined on 12.03.2021 and the matter was adjourned for 23.04.2021 for leading the evidence of the respondent. No evidence was produced on 23.04.2021 and 17.07.2021 and the matter was adjourned for 19.08.2021 as the last opportunity on which date the order of striking off the defence was passed. It is apparent from the order sheet maintained by the learned Trial Court that there is nothing to show that the husband was even asked to pay the arrears of maintenance. When the matter was listed for recording the evidence, the learned Trial Court decided to strike off the defence for failure to pay the interim maintenance. This is contrary to the judgment of Rajnesh (supra), wherein it was laid down that such an order is to be passed as a last resort. Therefore, there is a force in the submission of learned counsel for the respondent/husband that the order passed by the learned Trial Court dated 19.08.2021 is not sustainable.

18. Once, the order dated 19.08.2021 is held to be unsustainable, the further proceedings conducted thereafter and the final order dated 01.09.2021 will also fall through.

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19. Consequently, the revision filed by the respondent/husband is allowed and the order dated 19.08.2021 .

passed by the learned Trial Court and the consequent order dated 01.09.2021 are ordered to be set aside.

20. The matter is remitted to the learned Trial Court for allowing the respondent-husband to lead evidence and the learned Trial Court shall proceed as per the law.

21. Since the order dated 01.09.2021 has been set aside, therefore, the revision filed by the petitioner/wife has become infructuous and is dismissed as infructuous.

22. The parties through their respective counsel are directed to appear before learned Trial Court on 02.08.2024.

23. Registry is directed to transmit the records of the case forthwith.

(Rakesh Kainthla) Judge 16th July, 2024 (Saurav pathania)